Northam Vale County Council

Contract for the redevelopment of the Market Walk highways depot

Between Northam Vale County Council (the Council) and Greystoke Construction (Midlands) Limited (the Contractor). Contract reference NVCC/CAP/0412.

Schedule 2: Payment milestones

1. This Schedule sets out the milestones at which the Contractor may apply for payment under clause 4 of the Contract. Each application shall be accompanied by the evidence named in the Payment trigger column.

2. The Contract Administrator shall certify each milestone within 10 working days of a complete application. The Council shall pay a certified amount within 30 days of receiving a valid invoice, in accordance with section 68 of the Procurement Act 2023 and the Contract.

3. Retention of 3 per cent applies to milestones 1 to 10. Half of the retention is released at practical completion and the balance at the end of the defects period.

4. Amounts exclude VAT. Milestones may be re-sequenced only by a variation instructed in writing.

5. An application shall be made on the Council's application form and shall state the milestone number, the sum applied for and the evidence enclosed. An application without the evidence named in the Payment trigger column is not a complete application, and the Contract Administrator shall say so in writing within 5 working days.

6. The due date for payment of a certified milestone is the date on which the Council receives a valid invoice for it. The final date for payment is 30 days after the due date.

7. The Council shall issue a payment notice within 5 days of the due date, stating the sum it considers due and how that sum is calculated. If the Council intends to pay less than the notified sum, it shall issue a pay less notice no later than 7 days before the final date for payment, giving its reasons.

8. If a certified amount is not paid by the final date for payment, simple interest is payable on it at 8 per cent a year above the Bank of England base rate from the final date for payment until the date of payment.

9. Invoices shall be addressed to the Council's Accounts Payable team, quote the contract reference and the milestone number, and be submitted through the Council's e-invoicing portal. Paper invoices are not accepted.

10. Payment of a milestone is not evidence that the work is complete or free from defects and does not affect the Contract Administrator's powers under clause 17 of the Contract.

11. Where a milestone is achieved in part only, the Contract Administrator may certify a part payment in proportion to the value of the work completed, on the Contractor's written request.

12. The Council may deduct from a payment under this Schedule any sum the Contractor owes it under the Contract, provided the deduction is stated in its payment notice or pay less notice.

13. The Contractor shall not assign the right to receive payment under this Schedule without the Council's prior written consent, which shall not be unreasonably withheld.

14. The amounts in the table below are fixed. They are not subject to fluctuation, indexation or any other adjustment except by a variation under clause 22 of the Contract.

No.	Milestone	Payment trigger	Due date	Amount (£, ex VAT)
1	Mobilisation and site set-up	Site compound established and welfare facilities accepted by the Contract Administrator	12/01/2027	48,500.00
2	Enabling works	Asbestos removal certificate issued and demolition of the former salt barn complete	26/02/2027	132,750.00
3	Substructure	Foundations and ground-bearing slab signed off by the Council's structural engineer	30/04/2027	286,400.00
4	Frame	Steel frame erected, plumbed and bolted, with the frame inspection certificate issued	18/06/2027	412,900.00
5	Envelope	Roof covering, wall cladding, glazing and the vehicle bay doors complete so that the building is weathertight,	27/08/2027	365,200.00

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No.	Milestone	Payment trigger	Due date	Amount (£, ex VAT)
		confirmed in writing by the Contract Administrator after a water test of every roof outlet and gutter and a visual inspection of all flashings, sealant joints and door seals		
6	Mechanical and electrical first fix	Containment, cabling and pipework installed and pressure-tested	22/10/2027	241,300.00
7	Vehicle wash bay and interceptor	Wash bay, oil interceptor and discharge consent in place	26/11/2027	98,650.00
8	Internal finishes	Floors, partitions, ceilings and decorations complete in all rooms	21/01/2028	154,800.00
9	External works and drainage	Yard surfacing, drainage connections and site lighting complete	03/03/2028	176,250.00
10	Commissioning	All plant commissioned and the operation and maintenance manuals accepted	14/04/2028	64,900.00
11	Practical completion	Certificate of practical completion issued	05/05/2028	120,000.00
12	End of defects period	Certificate of making good defects issued, 12 months after practical completion	05/05/2029	50,000.00
	Total			**2,151,650.00**

Signed for the Council: _____ Signed for the Contractor: _____

SYNTHETIC TEST DOCUMENT - fictional authority and supplier - not a real notice